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Case Name: *Torres v. ABM Healthcare Support Services, Inc.*
Case No.: 25CV470300

This is a representative action arising from alleged wage and hour violations. This action is related to a class action filed in this Court between the same parties: Case No. 24CV450836. Counsel for plaintiff Marina Dekovic Torres (“Counsel”) has filed a motion to be relieved as counsel. The motion is unopposed. As discussed below, the Court GRANTS the motion.

I. Legal Standard

Motions to be relieved as counsel are technical and governed by rule 3.1362 of California Rules of Court (“Rule 3.1362”). Notice and motion must be directed to the client on Judicial Council Form MC-051. No memorandum is required. (Rule 3.1362(a) & (b).) Counsel must provide a declaration on Judicial Council Form MC-052 stating “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).”⁶ (Rule 3.1362(c).)

The notice of motion and motion, the declaration, and the proposed order must be served on the client and all parties “by personal service, electronic service, or mail.” (Rule 3.1362(d)). Rule 3.1362(d) sets forth the service requirements, as follows:

If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:
(A) The service address is the current residence or business address of the client;
or
(B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

⁶ Code of Civil Procedure section 284 provides, “The attorney in an action or special proceeding may be changed at any time before or after judgment of final determination, as follows: [¶] 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; [¶] 2. Upon the order of the court, upon the application of either client or attorney, after notice one to the other.”

(Rule 3.1362(d).)

The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order. After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.

(Rule 3.1362(e).)

II. Discussion

Counsel states: "This motion is made per California Rules of Professions Conduct, Rule 1.16(a)." (Counsel's Declaration, MC-052, ¶ 2.) Counsel further states they have served Plaintiff by mail at an address confirmed as current within the prior 30 days. (*Id.* at ¶ 3.)

Rule 1.16(a) provides: "Except as stated in paragraph (c), a lawyer shall not represent a client or, where representation has commenced, shall withdraw from the representation of a client if: [¶] (1) the lawyer knows or reasonably should know that the client is bringing an action, conducting a defense, asserting a position in litigation, or taking an appeal, without probable cause and for the purpose of harassing or maliciously injuring any person; [¶] (2) the lawyer knows or reasonably should know that the representation will result in violation of these rules or of the State Bar Act; [¶] (3) the lawyer's mental or physical condition renders it unreasonably difficult to carry out the representation effectively; or [¶] (4) the client discharges the lawyer. On this ground as stated in counsel's declaration, the Court finds good cause to GRANT the motion.

The motion to be relieved as counsel is GRANTED.

Case Management Conference June 3, 2026 at 2:30 p.m. is VACATED.

Further Case Management Conference for identification of counsel for Plaintiff, and for consideration of dismissal absent appearance of new counsel, is set October 7, 2026 at 2:30 p.m. in Department 11. Plaintiff's failure to retain new counsel prior to that date may result in the dismissal of the action.

Counsel must submit a revised proposed Order on Judicial Council form MC-053 within 5 court days, which correctly includes the next scheduled hearing date of October 7, 2026 and its purpose. The Order must be promptly served on Plaintiff.

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